

		Accordingly, the Court GRANTS the motion for protective order. Defendants submit a proposed protective order as Exhibit 4 to the declaration of Laurie Petrie. The parties appear to agree with most of the substance of the protective order, except for paragraph 8. The Court finds that paragraph 7 provides Defendants with sufficient protections, and therefore, finds paragraph 8 unnecessary. Defendants to submit a proposed protective order consistent with this ruling. Moving party to give notice.
14	30-2023-01325265 Doe 1 vs. Anderson	1. Motion for Protective Order <u>Motion 1</u> Defendant Richard Andersen’s (Defendant) Motion for Protective Order (Motion) is DENIED. Defendant Richard Andersen moves for a protective order staying his deposition “until such time as the facts of Plaintiffs’ complaint can be more fairly understood and the parties can conduct discovery that does not abridge Defendant’s Fifth Amendment right against self-incrimination.” (Motion, 13: 17-22.) Defendant argues that a protective order must issue because “a real possibility of Criminal Action remains open against Defendant.” (Motion, 10:8-9.) Defendant further argues that this is because any information Plaintiffs seek during discovery will force Defendant to assert his Fifth Amendment rights, and forcing the Court to rule on this many assertions of the Fifth Amendment will be a waste of the parties and the Court’s resources. However, as to the status of any criminal action or investigation, Defense counsel Ed Flores only attests: “the investigation was proceeding as late as October 2022. The status of this investigation is currently unknown...” (Flores Decl., ¶ 2.) This does not demonstrate that Defendant currently faces a threat of criminal prosecution. Further, Defendant’s Motion does not cite to legal authority which demonstrates that a stay is warranted. Defendant primarily relies on <i>Pacers, Inc. v. Superior Court</i> (1984) 162

Cal.App.3d 686 (*Pacers*). However, *Pacers* is factually distinguishable because moving parties presented more concrete evidence that they were faced with criminal prosecution. Specifically, the moving parties in *Pacers* differ from Defendant in this action because they did give depositions, at which they asserted their Fifth Amendment privilege. (*Id.* at 688.) Further, moving parties presented evidence that the United States Attorney maintained an “open file” on their case even though the federal grand jury refused to issue indictments. (*Id.* at 687.) In contrast to *Pacers*, Defendant does not have evidence of any ongoing investigation, as his counsel attests that the current status is “unknown.” Further, Defendant did not actually assert his Fifth Amendment privilege at any deposition.

In contrast, to *Pacers*, *People ex rel. Allstate Ins. Co. v. Suh* (2019) 37 Cal. App. 5th 253, 258 (*Suh*) cited by the Opposition, is more factually on point. The Court in *Suh* distinguished *Pacers*, noting, among other things, that the defendants in *Pacers* presented evidence that there was a real possibility of criminal prosecution. (*Id.* at 258.) The Court in *Suh* further held that it was appropriate for the trial court to deny the request for a stay because “although there was some evidence of a criminal investigation at some point, there was no evidence that it was ongoing.” (*Id.*)

Based on the foregoing, the Court DENIES Defendant’s Motion.

Plaintiff is to give notice.

2. Motion for Preference

Motion 2

Plaintiffs Jane Doe 1, a minor by and through her Guardians Ad Litem Joshua Busch, Jennifer Busch and Jane Doe 2, a minor by and through her Guardians ad Litem Mike Jones and Dianne Jones’ (Plaintiffs) Motion for Trial Preference (Motion) is GRANTED.

Plaintiffs move for preferential trial setting pursuant to Code of Civil Procedure section 36(b), which provides: “[a] civil action to recover damages for wrongful death or personal injury shall be entitled to preference upon the motion of any party to the action who is under 14 years of age unless the court finds that the party does not have a substantial interest in the case as a

	whole. A civil action subject to subdivision (a) shall be given preference over a case subject to this subdivision.” Here, Plaintiffs submit evidence through their verified Form Interrogatory Responses that they are each under 14 years of age. (see Becket Decl., ¶¶ 3-6, Exhibits A-B.) Plaintiffs also each have a substantial interest in the case as a whole as both are parties to the case. Further, both Plaintiffs allege that they suffered personal injury as a result of Defendant’s alleged sexual assault. (see Complaint, ¶ 37.) In Opposition, Defendant contends that preference should not be granted because it violates Defendant’s right to due process by severely truncating Defendant’s discovery rights. However, as recognized by <i>Peters. v. Superior Court</i> (1989) 212 Cal.App.3d 218, 224, cited by the Opposition, preference under Code of Civil Procedure section 36(b) is mandatory, not discretionary, if the moving party meets the requirements. As discussed above, Plaintiffs have shown they are under 14 and have a substantial interest in the litigation. Therefore, the Court GRANTS Plaintiffs’ Motion. The Court schedules Trial for May 17th, 2024, at 9:00 am in Department C32. Plaintiffs are to give notice.
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